

26STLC00289 26STLC00289

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C08%2F24%2F2026

Source SHA-256: 320f1efdd902956addde6da4302c4db146abbaf4adaef3ac3a4d394b173dc31f

Case Number: 26STLC00289 Hearing Date: August 24, 2026 Dept: 26

TENTATIVE RULING:

Defendant Westside Loan Office's Motion to Compel

Plaintiff's Responses to Requests for Production of Documents: Set One; Request for Monetary Sanctions, is granted in part, and denied in part.

Plaintiff Kevin Robinson is to serve verified responses to the requests without objections, within 20 days' service of this order. Defendant's request for an award of sanctions is denied.

Analysis:

On March 18, 2026, Defendant Westside Loan Office ("Defendant") served Requests for Production of Documents, Set One, on Plaintiff Kevin Robinson ("Plaintiff"). (Motion, Erikson Decl., ¶¶2-5 and Exhs. A-B.) As of Defendant's filing of the instant Motion to Compel Plaintiff's Responses to Requests for Production of Documents: Set One; Request for Monetary Sanctions on July 28, 2026, Plaintiff had not served responses despite Defendant's effort to meet and confer. (Id. at ¶¶6-12 and Exhs. C-D.) Defendant now moves to compel Plaintiff's responses to the requests pursuant to Code of Civil Procedure section 2031.300. There is no requirement for a prior meet and confer effort before a motion to compel initial responses can be filed. (Code Civ. Proc., § 2031.300.) Further, the motion can be brought at any time after the responding party fails to provide the responses. (Code Civ. Proc., § 2031.300.) Based on Plaintiff's failure to respond, Defendant is entitled to an order compelling code-compliant responses without objections.

Defendant also moves for an award of sanctions under Code of

Civil Procedure section 2031.300, subdivision (c), which provides for sanctions if a party unsuccessfully makes or opposes a motion to compel responses without reasonable justification. (See Code Civ. Proc., § 2031.300, subd. (c) ["The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."].) However, Plaintiff did not file an opposition to the instant Motion.

Defendant also points to Code of Civil Procedure sections 2023.010 and 2023.030. In *City of Los Angeles v. Pricewaterhousecoopers, LLP* (2024) 17 Cal.5th 46, the Supreme Court observed:

It is already well-established that a court may not rely on [Code of Civil Procedure] section 2023.030 to override the limitations prescribed by any other applicable sanctions provision in the [Civil Discovery] Act. A court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision. And where it invokes that authority, it is constrained by the long-settled rules generally governing the imposition of discovery sanctions under the Act.

(*City of Los Angeles v. Pricewaterhousecoopers, LLP* (2024) 17 Cal.5th 46, 74-75.) Defendant has not demonstrated that Plaintiff's failure to serve discovery responses is "an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." Therefore, the Court declines to invoke its independent authority to impose sanctions under Code of Civil Procedure sections 2023.010 and 2023.030.

Conclusion

Defendant Westside Loan Office's Motion to Compel Plaintiff's Responses to Requests for Production of Documents: Set One; Request for Monetary Sanctions, is granted in part, and denied in part.

Plaintiff Kevin Robinson is to serve verified responses to the requests without objections, within 20 days' service of this order. Defendant's request for an award of sanctions

is denied.

Moving party to give notice.